Extract Three: *MON-810 is a genetically modified variety of maize made by the Monsanto corporation. A number of European countries have now banned its cultivation. In response to moves in this direction from some European countries, the American ambassador to Paris suggested that the US should 'calibrate a target retaliation list that causes some pain across the EU'.*

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SUBJECT: FRANCE AND THE WTO AG BIOTECH CASE

1. (C) Summary: Mission Paris recommends that that the USG reinforce our negotiating position with the EU on agricultural biotechnology by publishing a retaliation list when the extend "Reasonable Time Period" expires. In our view, Europe is moving backwards not forwards on this issue with France playing a leading role, along with Austria, Italy and even the Commission. In France, the "Grenelle" environment process is being implemented to circumvent science-based decisions in favor of an assessment of the "common interest." Combined with the precautionary principle, this is a precedent with implications far beyond MON-810 BT corn cultivation. Moving to retaliation will make clear that the current path has real costs to EU interests and could help strengthen European pro-biotech voices. In fact, the pro-biotech side in France – including within the farm union – have told us retaliation is the only way to begin to begin to turn this issue in France. End Summary.

2. (C) This is not just a bilateral concern. France will play a leading role in renewed European consideration of the acceptance of agricultural biotechnology and its approach toward environmental regulation more generally. France expects to lead EU member states on this issue during the Slovene presidency beginning in January and through its own Presidency in the second half of the year. Our